STATE OF NORTH CAROLINA COUNTY OF WAKE JEFFERSON GRIFFIN, Petitioner, vs. NORTH CAROLINA STATE BOARD OF ELECTIONS, Respondent.	IN THE GENERAL COURT OF JUSTICE SUPERIOR COURT DIVISION 24CV040619-910; 24CV040620-910; 24CV040622-910

BRIEF OF IMPACTED VOTERS AND NON-PARTISAN ORGANIZATIONS AS *AMICI CURIAE* SUPPORTING RESPONDENT

Amici Ralim Allston, Cindy Oates Anthony, Rachel Arnold, Amy Bryant, Denise Carman, Louanne Caspar, Alexia Chavis, Jose Benito del Pliego, Sofia Dib-Gomez, Mary Kay Heling, Wesley Hogan-Philipsen, Elizabeth Hunter Kesling, Kevin Hunter-Kesling, Lesley-Anne Leonard, Gaynelle Little, Jenna Marrocco, Audrey Meigs, Bruklyn Miller, Dirk Philipsen, Larry Repanes, Anna Richards, Lila Richardson, Sophia "Felix" Soto, Alexa Adamo Valverde, Diane Wynne, and Pheobe Zerwick (together, the "Impacted Voters"), together with the North Carolina State Conference of the NAACP, North Carolina Black Alliance, Common Cause Education Fund, Democracy North Carolina, El Pueblo, North Carolina Asian Americans Together, and North Carolina Poor People's Campaign (the "Organizational Amici," together with the Impacted Voters, the "Amici"), respectfully submit this brief to aid the Court in considering the election protests filed by Judge Griffin (the "Election Protests" or "Protests") and ensure that the statutory scheme is properly applied, the protester is held to the correct burden of proof, and the constitutional rights of the challenged North Carolina voters are protected.[1]

[1] No person or entity other than the amici curiae and counsel helped write or contributed money to this brief.

INTRODUCTION

More than 60,000 voters are at risk of having their ballots cancelled because Judge Jefferson Griffin, the losing candidate for a North Carolina Supreme Court seat, has challenged their ballots in the 2024 General Election by means of this election protest. Their transgression? Voting exactly how the State Board of Elections told them to, in accordance with longstanding election law and practices used for numerous election cycles before this one.

And who, exactly, are the challenged voters? A list of over 60,000 North Carolinians, composed of disproportionately Black, Latino, and Asian American and Pacific Islander ("AAPI") voters in a state with a long, tragic history of suppressing votes from these communities. The challenge list includes voters from all walks of life, all of whom voted in good faith reliance on the rules promulgated by the State Board of Elections, in order to cast their ballots, make their voices heard, and ensure that the will of the people remains the lodestar of our political system. These are voters who have not only done nothing wrong, but who in fact followed all the rules that were asked of them.

Through all of the legal wrangling and exhaustive, unprecedented procedural maneuvering amongst the parties to date, the voices of the thousands of challenged voters themselves have been glaringly absent. Despite airing his vehement disagreement with North Carolina's State Board at length, Judge Griffin never once makes any attempt to reckon with the interest of the voters whose ballots he seeks to discard or give even minimum effort to show that these voters actually did anything wrong. These voters not only deserve to be heard, but they deserve to be centered in this proceeding. Amici, themselves a small subset of the challenged voters directly impacted by this proceeding, as well as non-partisan organizations who work with impacted voters across the state, respectfully submit this brief to ensure that the Court hears the voices and perspective of those voters at risk of being baselessly silenced.

Judge Griffin's protests seek retroactive disenfranchisement of these voters, and more than 60,000 like them, based on legal theories that have been rejected by both federal and state courts. Stunningly, Judge Griffin fails to allege any evidence that even a single one of these voters is actually ineligible to vote in North Carolina—only that they should have anticipated his unprecedented challenges and followed an alternative hypothetical set of rules, never provided to them by the state, when casting their ballot. This evidence is required under state law, and it is the protester's burden of proof to make this showing by *substantial* evidence. This failure to allege, let alone prove, that any of the challenged voters is actually ineligible to vote in North Carolina is a sufficient, independent ground to reject Judge Griffin's protest.

The protests also request sweeping and unprecedented remedies that would permanently destabilize the post-election canvass period and deny voters any assurance their ballots will be counted, despite having met North Carolina's eligibility and photo identification requirements in precisely the way that was required of them. If Judge Griffin's protests succeed, no election will ever have finality in North Carolina again until losing candidates have taken their crack in the courts. These requests are without basis in state law and dubious both in the eyes of bedrock constitutional principles and fundamental fairness. Put simply, Judge Griffin's protests ask for extraordinary relief with an extraordinary lack of evidence.

The distrust that granting Judge Griffin's request would engender cannot be overstated. If Judge Griffin receives his extraordinary remedy, on the basis of novel legal theories being adopted *ex post facto* and applied retroactively, despite seeking to cut procedural corners and without meeting his statutorily mandated burden, it will shake North Carolina elections to the core. If he is able to take these actions at the expense of voters whose greatest sin was taking the state at its word and following the North Carolina State Board of Elections' stated rules and regulations to cast a legally compliant ballot, it will create a winter of distrust in the democratic process amongst

all North Carolinians. To avoid precisely that outcome, and in accordance with North Carolina law, Amici respectfully request that this Court reject Judge Griffin's protests in their entirety.

INTEREST OF AMICI CURIAE

Amici are (1) North Carolina voters who at the time of voting in the 2024 General Election met all the requirements under North Carolina law to register and vote, lawfully voted under the laws and regulations that existed during the voting process, and now face threat of disenfranchisement by the relief sought in Judge Griffin's Election Protests, specifically voters challenged as lacking a Social Security Number ("SSN") or driver's license number in their voter registration (the "Incomplete Protests") or not presenting voter ID when voting overseas ("Overseas ID Protests") as a sole reason for disqualification (hereinafter the "Impacted Voters")[2]; and (2) non-partisan, non-profit North Carolina-based organizations that engage in extensive year-round voter outreach, voter education, and election protection activities across the state with a focus on communities of color (hereinafter, "Organizational Amici").

As described in Exhibits 1 through 26, and summarized below, each of the Impacted Voters have an interest in the outcome of this matter both with regard to their challenged ballot in the 2024 General Election and their broader faith in North Carolina elections should their lawful vote be canceled due to no fault of their own. Judge Griffin's protests also disproportionately impact the Black and brown constituents and members of the Organizational Amici, whose voting rights are under consistent attack in the state of North Carolina, which provides a unique and particularly strong interest in the case for those organizations.[3] The Impacted Voters and Organizational Amici

[2] While Amici do not specifically address the "Overseas Non-Resident" category of election protest here, those number less than the margin of victory and thus would not alone cause an outcome-determinative impact on the election.

[3] According to an analysis completed by the News and Observer, "Black registered voters were twice as likely to have their votes challenged [by Judge Griffin] as white voters." "Black NC Voters Twice as Likely to Have Ballots Challenged in Griffin Election Protests," (Jan. 7, 2025), https://www.newsobserver.com/news/politics-government/election/article296693744.html. Professor Chris Cooper from Western Carolina University also published an analysis of how the voters on Judge Griffin's list compared to the entire pool of voters who cast a ballot

are not advocating for or against any specific candidate for office. Rather, they seek to protect the fundamental right to vote of eligible North Carolina voters across this state whose valid votes in the 2024 General Election have been baselessly called into question by these protests.

Ralim Allston, a 35-year-old Black man residing in Pasquotank County, has been a registered voter in North Carolina since 2008. He checked his registration before voting in November 2024, and he voted early in-person with no issues. If his ballot is retroactively discarded under Judge Griffin's protest, he will feel angry and discouraged because he thought the United States was a democracy, and that voting was supposed to be fair. Allston believes that this challenge is stripping him of his right to vote. Ex. 1.

Cindy Oates Anthony was born in Gaston County, North Carolina, and has resided in Jackson County since 2008. She is a fully qualified voter, and has been a registered voter in the state since at least 1992. Ms. Anthony presented her driver's license when she voted early in the November 2024 General Election. She learned that her name was on the list of voters challenged by Judge Griffin from a member of her church, and contacted the Jackson County Board of Elections to confirm that she did provide her driver's license number on her registration form. Anthony believes it is the right and responsibility of citizens to vote and that everyone who is eligible should be able to cast a ballot and have that vote counted. If her ballot were discarded, she would feel like a fundamental right were taken away, and she would wonder what this means for all of the elections that have occurred. Ex. 2.

Rachel Suzanne Arnold is a 51-year-old senior vice president of a government affairs firm. She has resided in Guilford County since moving to North Carolina in 2009. She is an active

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in the November 2024 election, as well as compared to all active registered voters in North Carolina. Professor Cooper concludes that the challenged voters are "much less likely to be white than the pool of voters in 2024," and that they are more likely to be either Black, Hispanic or Asian. "An Analysis of Challenged Voters in the 2024 NC Supreme Court Justice Election" (Jan. 12, 2025), https://www.oldnorthstatepolitics.com/2025/01/an-analysis-of-challenged-voters-in.html.

voter and has participated regularly in primary and general elections held in Guilford County since registering to vote in 2009. She has never had any issue with voting. Arnold believes voting is a form of expression and a statement of values. She participated in early voting during the November 5, 2024 General Election. While at the voting site, she gave her "Real ID" to poll worker and she received a ballot to vote. Although there were no issues, Arnold received a mailer from the North Carolina Republican Party suggesting that her vote could be rejected. She assumed it was junk mail. She called the NC Republican Party and left a message, but no one returned her call. Shortly thereafter, she stumbled upon the Griffin Challenge list circulating on social media and was floored to see her name. She contacted the State Board of Elections and was told that if there was a hearing she would be notified. Arnold believes she is an upstanding citizen and always adheres to the voting laws. She believes that the process contesting her vote is unfair and it has shown her how easily a miscarriage of justice can happen in our democratic society. Ex. 3.

Amy Grace Bryant is a physician, a wife, a mother, and an educator. Dr. Bryant moved to Durham, North Carolina, in 2011. She has resided in the same location since 2011. Dr. Bryant registered to vote at the North Carolina DMV in 2011 and she has voted in every election held in her county since that time. In the November 5, 2024 General Election, Dr. Bryant voted at an early voting site. She used her North Carolina driver's license to vote without any complications. Dr. Bryant learned that her vote was being challenged after she received a post card from the North Carolina Republican Party. She initially thought that it was junk mail because it was addressed to "Amy Bryant or current resident." She eventually found her name on this list of voters whose registration was being questioned by Judge Griffin's campaign. Dr. Bryant has reached out to the Griffin campaign and has not received any response. Dr. Bryant spends her working hours caring for patients and educating medical trainees, and she finds it sickening that she now must fight to

save her lawfully cast vote. Dr. Bryant believes this entire process is unfair and that to cancel her vote along with the 60,000 others would be a blow to our democracy. Ex. 4.

Denise Bradley Carman, a 59-year-old white woman residing in Chatham County, has been registered to vote in North Carolina since 2004. She has also served as an Election Judge for the Goldston precinct for the past 18 months. She feels strongly that everyone who is eligible to vote should have the opportunity to do so and enjoys working for our state's elections as a way to contribute to a process that is important to her in a non-partisan way. Ms. Carman presented her passport as identification when she voted early in the 2024 General Election. When she learned through her election work that her vote was being challenged due to an allegedly "incomplete" registration record, she contacted the Chatham County Board of Elections, which recommended she submit a new voter registration application but did not have any advice for what she could do about the challenge. She will feel angry if, as a qualified voter of the state, her ballot is discarded and also concern for others who do not understand the process as well. She is particularly concerned such a challenge will deter others from voting, and wonders if that might be a motivation for the current challenges that are happening. Ex. 5.

Louanne Flanagan Caspar is a 52-year-old white woman residing in Wake County. Caspar has voted regularly since registering to vote at the age of 18, and she also volunteers regularly at the polls as a precinct official. Caspar voted in the November 5, 2024 General Election at an early voting site in Wake County, and she presented her North Carolina driver's license as her photo ID. When she learned she was on Judge Griffin's list of voters whose registrations lacked either a Social Security Number or a driver's license number, she contacted the Wake Board of Elections to request a copy of her submitted voter registration form, which shows that her voter registration application did include her Social Security Number. Caspar will feel disenfranchised

if her ballot is retroactively discarded under Judge Griffin's protest and believes it is fundamentally unfair to discount her vote. Ex. 6.

Alexia Chavis is a student of North Carolina Agricultural and Technical State University ("NC A&T") and a resident of Greensboro, North Carolina. Chavis pre-registered to vote in North Carolina in 2020. Voting is very important to her, and she currently serves as the Vice President for NC A&T's chapter of Black Girls Vote. She cast her ballot in the November 5, 2024 election by early voting in person at a site in Guilford County, and she showed her student ID to comply with the photo ID requirement. If her ballot is discarded under this protest, she will feel disheartened, frustrated and disappointed. Chavis feels that voters should not have to deal with voter suppression from people that they elect, and that this burden should not fall on the voters when they did not do anything wrong. Ex. 7.

J. Benito Del Pliego is a naturalized citizen of the United States and has lived in North Carolina since 2002. He is a fully qualified voter, and votes regularly because he believes voting is one of the basic principles of our democracy, and that it is fundamental as a citizen that he exercise his right to vote. Mr. Del Pliego learned his name was on a list of voters challenged by Judge Griffin from a friend and when he learned of the challenge, he contacted the Orange County Board of Elections to request a copy of his registration form. That form shows that he did provide the last four digits of his Social Security Number when he registered to vote. He was told that the county may have had issues reconciling his registration and his Social Security Number because his last name has two words, but there was no further action required on his part. Del Pliego believes challenge feels like a malicious effort to suppress his vote, and if his vote is discarded he will feel that the basics of our democracy are being challenged without reason. Ex. 8.

Sofia Dib-Gomez, a 19-year-old Hispanic woman residing in Durham County, registered to vote for the very first time in 2024. As a student at Duke University, Dib-Gomez is a member

of the Student Voting Rights Lab and a first-year fellow for Duke Votes, a non-partisan student group at Duke which works to educate, register and mobilize the Duke community to vote. She cast a ballot in-person in Durham County without issue, and did not realize that her vote was being challenged until she found her name on the list through her work at the Student Voting Rights Lab. When she found out that her ballot was being challenged, she contacted the Durham County Board of Elections, which confirmed that she provided her Social Security Number when she registered to vote. If her ballot is thrown out under this protest, she will feel very frustrated to have her vote not counted in the first election in which she was eligible to vote. Ex. 9.

Mary Kay Heling was born in Wisconsin but has lived in Raleigh, North Carolina, since January 2016. Heling believes that voting is not just a right, but a responsibility and requirement. Heling has been voting in North Carolina for 9 years and has not been informed of any issues with her registration during that time. She cast a ballot in the November 5, 2024 General Election by early voting, and presented her North Carolina driver's license as her photo ID. She confirmed with the Wake County Board of Elections that she provided a Social Security Number at the time she registered, and that no further action was required on her part. Heling is frustrated and angry about her ballot being potentially discarded because her right to vote is being stripped away despite doing all that was required of her. Ex. 10.

Wesley Hogan-Philipsen, a 54-year-old white female residing in Durham County, has lived at her current residence since August 2013. She voted in the November 5, 2024 General Election by going to an early voting site, and she used her North Carolina driver's license as her photo ID. When she contacted the Durham County Board of Elections after learning that she was on the list of challenged voters, staff told her that because she had requested an absentee ballot overseas in 2022, the Social Security Number and driver's license information that was previously in her registration record was depopulated to meet ballot distribution deadlines required by federal

law. Staff reprocessed and repopulated the information and told her no further action was required on her part. If her vote is not counted, Hogan-Philipsen sees the intentional removal of people from the rolls as a 200-year pattern and believes doing so would undermine the fundamental premise of what this country is supposed to stand for. Ex. 11.

Elizabeth Hunter Kesling, a wife and mother of children ages 7 and 10-years-old, has been a resident of Hillsborough, North Carolina, since the fall of 2020. She has been registered at her current residence since October 2020. She cast her ballot in the November 5, 2024 election by going to an early voting site in her county. When voting, she provided her NC driver's license. Hunter Kesling believes that in a world where problems and issues can seem insurmountable, that showing up to vote is one concrete step she can take to act on her beliefs and hopefully work toward a better future for herself and others. She also feels that as a woman, she understands those who came before her fought for the right to vote, and she likes to honor their legacy every time she casts her ballot. If her ballot is retroactively discarded under Judge Griffin's protest, she will be disillusioned with the electoral system. Ex. 12.

Kevin Hunter Kesling, husband, father, and software engineer, was born in Chapel Hill and— after several moves out of the state—now lives in Hillsborough, in Orange County. He has lived at his current address since September 2020. Hunter Kesling registered to vote in North Carolina on October 7, 2020 at the Orange County Board of Elections in Hillsborough using his United States Passport and Social Security Number. For the November 5, 2024 election, he cast his ballot at an early voting site in his county. While voting, he provided his North Carolina driver's license. He did not experience any issues regarding his registration during his voting experience. Voting is important to Hunter Kesling because he believes the right to vote is a proxy for equality and it is important that all are allowed to exercise this expression with dignity and an implicit expectation of fairness. Ex. 13.

Lesley-Anne Leonard, a 38-year-old white woman residing in Forsyth County, moved to North Carolina in 2004 for college and decided to stay post-graduation. She has been a registered voter in Forsyth County since 2010, and has voted in every general election without issue since she first registered. Her parents instilled in her the importance of voting, and she tries to vote in as many elections as she can. It was not until January 2025, when a friend texted her, that she learned she was in fact on the list and was being challenged as having an "incomplete" registration record. She contacted the Forsyth County Board of Elections, which confirmed that her original registration did include both her driver's license number and the last four digits of her Social Security Number. If her ballot is discounted now, she will feel betrayed, especially because she has done everything she was supposed to do to cast a valid ballot and is eligible to vote in the state. Ex. 14.

Gaynelle Little, a 59-year-old Black woman residing in Wake County, has been registered to vote in North Carolina since 1986, and has been voting regularly in North Carolina for decades without issue. She voted in the November 5, 2024 General Election by going to an early voting site and provided her North Carolina driver's license as her photo ID at that time. Little was surprised to learn she was on the challenge list because she followed all the requirements to register and vote, and she will feel robbed of her constitutional right to vote if her ballot is retroactively discarded under Judge Griffin's protest. Ex. 15.

Jenna Marie Marrocco is a 27-year-old North Carolina resident. Marrocco has lived in North Carolina since 1998 and registered to vote in 2016. In September 2024, Marrocco checked her voter status and found out that her voter registration was listed as "inactive". She did her due diligence and determined what she needed to do prior to voting. Accordingly, she presented to the South East YMCA in Wake County during the early voting period. Prior to casting her vote, she handed her valid driver's license and a utility bill from her current address to the election official.

She was given a ballot and she was able to vote. She never received a postcard or any other form of communication from Judge Griffin's campaign challenging her vote**,** nor did she hear from the State Board of Elections. Marrocco believes she took every step to make sure she was eligible to vote. Ex. 16.

Audrey Meigs, a 23-year-old Asian American woman residing in Durham County, was born in China but now lives in Chapel Hill, North Carolina. Meigs has been working in the voting rights space since high school, when she held voter registration drives in her hometown of Asheville, North Carolina. She is very dedicated to voting rights work and serving the Asian American community because she feels they are often left out of the political process. When she learned that she was being challenged on Judge Griffin's list, she contacted the Durham County Board of Elections, who confirmed that she had provided her Social Security Number when she registered and that no further action was required on her part. If her vote is thrown out as a result of these protests, Meigs will feel angry and disheartened, because someone running for a seat in the justice system should not be denying the right to vote to North Carolinians. Ex. 17.

Bruklyn Miller, a 27-year-old African American resident of Durham, North Carolina, is a part-time barista and videographer. She is a native of Durham County and is active in the Durham community. She registered to vote in on August 23, 2017 and is registered at her current residence. Miller is an active voter who has participated in several primary and general elections held in North Carolina since 2020. For the November 5, 2024 General Election, she cast her vote at a church in her county during the early voting period. She provided her North Carolina driver's license. Prior to getting her ballot, she raised the concern of her address not being updated on her registration. The poll worker changed it in the system. No other issues were raised by the poll worker regarding my registration. She has never had any issues casting her ballot. Voting is important to Miller because she knows elders took to the street to protest and organize in order to provide her the

opportunity to vote. Miller believes voting is her way of expressing her voice in a society that tries to suppress it, and is extremely frustrated that her vote is being challenged. Ex. 18.

Dirk Philipsen, a 65-year-old white male residing in Durham County, has lived at his current residence since August 2013. He has been registered to vote in North Carolina since 2013 and remembers registering using the last four digits of his Social Security Number. He voted in the November 5, 2024 General Election by going to an early voting site, and he used his North Carolina driver's license as his photo ID. Philipsen contacted the Durham County Board of Elections after learning his vote was being challenged for incomplete registration; staff told him his registration included his Social Security Number and assured him no further action was required on his part. Philipsen believes participating in your community and voting is a central part of one's responsibility as a citizen. If Judge Griffin's protest is successful and his vote is not counted, Philipsen would no longer trust the political process, he would feel disenfranchised, and would be appalled. Ex. 19.

Larry Repanes, a 68-year-old white male residing in Mecklenburg County, was born in New York and is currently a resident of Charlotte, North Carolina. He believes voting is a right and is key to democracy. Repanes voted in the November 5, 2024, election by going to an early voting site and showing his North Carolina driver's license to cast a ballot. After learning he was on the list of challenged voters from a neighbor, Repanes contacted the Mecklenburg County Board of Elections, and the staff informed him that both his Social Security Number and driver's license were present but not validated. Staff validated his Social Security information and assured him that no further action was required on his part. Repanes would be angry, shocked, and stunned if his vote were thrown out on a technicality that he believes could have and should have been resolved before the election. He believes the court not counting his and others' votes would be disenfranchisement and anti-democratic. Ex. 20.

Anna Richards, a 74-year-old Black woman residing in Orange County, has been voting since she was 18-years-old, and has been a registered voter in North Carolina since 2013. She is a retired corporate financial executor and a former County Commissioner for Orange County. She takes voting very seriously because her ancestors fought for her right to vote. Richards voted in the November 5, 2024 General Election at an early voting site in Orange County, and she presented her North Carolina driver's license as her photo ID. If her vote is thrown out as a result of Judge Griffin's protest, she will feel outraged because the United States is supposed to be a democracy, and she registered and cast her vote legally. Ex. 21.

Lila Richardson, a 23-year-old white woman living in Buncombe County, was born and raised in Asheville and still lives there today. Richardson has been registered to vote since she turned 18, and she believes that voting is an incredibly important opportunity for her to expand the future of her community. She cast her ballot in the November 5, 2024 election by early voting in person at a site in Buncombe County, and she showed her North Carolina driver's license to comply with the photo ID requirement. Richardson does not understand why her vote is being challenged because of incomplete registration, and found it difficult to navigate the process of obtaining more information on this challenge. If her ballot is discarded, she will feel frustrated and discouraged as she and her neighbors are still reeling from the traumatic effects of Hurricane Helene, and to have her vote discounted after the efforts she made to show up at the polls would feel disrespectful. Ex. 22.

Sophia "Felix" Angelita Soto is a resident of Guilford County, North Carolina. He pre-registered to vote when he was 17-years-old, and was excited to vote for the first time in the 2024 primary elections and again in the November 5, 2024 General Election after he turned 18. He had planned to vote by mail in the general election, but could not receive a ballot before traveling abroad because of the delay in printing absentee ballots in fall 2024. Instead, Soto voted from

overseas. He initially provided a copy of his passport when voting, but the Guilford County Board of Elections requested that he submit a new ballot because of an error and informed him that overseas voters do not need to provide a copy of photo ID. Soto will feel disappointed in the electoral system if his ballot is retroactively discarded, because he was excited for his voice to be heard. Ex, 23.

Alexa Adamo Valverde is a mental health therapist and nonprofit director, plus the mother of a 14 year old and a 9 year old. She was born in Florida and is currently a resident of Chapel Hill, North Carolina, in Chatham County. She voted in the November 5, 2024 General Election by going to an early voting site, and used her North Carolina driver's license as her photo ID. She registered to vote at the DMV when she received her North Carolina driver's license, so she does not understand how her Social Security Number or driver's license number could be missing. Ms. Valverde was raised to value democracy and believes that in a free country, every individual exercises their power by voting. If her vote is not counted, Ms. Valverde will feel outraged, and that something is broken in the system. Ex. 24.

Diane Wynne, a 56-year-old white female residing in New Hanover County, was born in New Jersey and is currently a resident of Wilmington, North Carolina. She votes regularly and has worked as a poll worker. She voted in the November 5, 2024 General Election by going to an early voting site, and she used her North Carolina driver's license as her photo ID. When she contacted the New Hanover County Board of Elections, staff told her that her registration contained her Social Security Number, and no further action was required on her part. If her ballot is retroactively discarded under Judge Griffin's protest, Wynne feels that would be outrageous because she filled the form out correctly and voted correctly. She did everything right. She also would feel that our country is not what she thought it was and would question the point of voting if her vote could be taken away. Ex. 25.

Phoebe Zerwick, a 64-year-old white woman residing in Forsyth County, was born in New York City and has been registered to vote in Forsyth County since about 1988. She believes that voting is the bedrock of our democracy and a free society, and that it is her civic duty to vote regularly. Zerwick voted in the November 5, 2024 General Election by casting an overseas ballot while she was teaching abroad through Wake Forest University. She was not required to provide a photo ID with her overseas ballot, but has both a North Carolina driver's license and a passport which are permissible photo IDs in North Carolina. Zerwick is furious that her ballot has been challenged in Judge Griffin's protest, and will feel stripped of her citizenship if it is retroactively discarded. Ex. 26.

North Carolina State Conference of the NAACP ("North Carolina NAACP") strives to achieve equity, political rights, and social inclusion by advancing policies and practices that expand human and civil rights, eliminate discrimination, and accelerate the well-being, education, and economic security of Black people and all persons of color. North Carolina NAACP has 70 adult branches and numerous student and youth branches, composed of over 10,000 members. Its members are predominantly Black or from other communities of color and include registered voters across the state. The organization has members that appear on the lists of voters protested by Petitioner as not having a driver's license number or last four digits of their SSN in their registration record. Due in part to this fact, North Carolina NAACP was accepted as Amicus Curiae by the United States Court of Appeals for the Fourth Circuit in the related matter *Republican National Committee v. North Carolina State Board of Elections*, No. 24-2044 (4th Cir. Oct. 25, 2024). Furthermore, the relief sought in this suit—discounting the votes of over 60,000 North Carolinians—frustrates a core part of the organization's mission, i.e., registering voters, educating them, and mobilizing them to polls. Casting aside these tens of thousands of votes would

compromise all the hard work that North Carolina NAACP did throughout the 2024 General Election.

North Carolina Black Alliance ("NC Black Alliance") is a nonpartisan 501(c)(3) organization that addresses policy and economic issues to enhance Black communities by developing and promoting systemic policy change. To further its mission, NC Black Alliance works to mobilize the electorate through registration and education, including by eliminating barriers to voting participation. NC Black Alliance has also created a platform (located at https://safevoternc.org/) to provide voters with credible, up-to-date information regarding voting options and clear guidelines on how they can vote and avoid obstacles while voting at the polls. In direct response to the election protests, NC Black Alliance has created a resource at https://ncblackalliance.org/countdontcancel/ to ensure the voice of the people is respected. In all of its efforts, NC Black Alliance works toward state-level systemic change through democratic engagement and collaboration with grassroots networks, and Petitioner's request to remove 60,000 voters' ballots from the count is detrimental to its efforts.

Common Cause Education Fund is a nonpartisan, 501(c)(3) organization which, along with its sister organization, Common Cause, has over 1.5 million members nationwide and staff in 25 states, including North Carolina. Common Cause Education Fund's mission centers on fair elections and encouraging a more representative, open, and responsive democracy. Common Cause Education Fund's North Carolina office created a website about the election protests (https://www.commoncause.org/north-carolina/griffin/), which includes information to help voters see if their name is on the election protests list. It also hosted a town hall event, launched a statewide public service campaign to raise awareness about the election protests, issued press releases, and posted information to its social media. Additionally, a number of Common Cause Education Fund's members and supporters are on the lists of voters challenged by Petitioner in

these election protests. Common Cause Education Fund seeks to ensure those members' votes are counted and their voices are heard. In the course of the organization's work to reach voters challenged in the protest, Common Cause Education Fund's North Carolina office and its partner organizations, including other amici organizations, prepared and verified a list of more than 1,000 voters who are speaking out against being challenged wrongfully in this election by Judge Griffin. *See* Ex. 27.

Democracy North Carolina ("Democracy NC") is a nonpartisan 501(c)(3) organization dedicated to increasing voter access and participation and reducing the corrupting role of money in politics through research, organizing, and advocacy. By engaging in substantial election protection efforts to ensure that voters can access the ballot, and spending substantial time and effort to produce nonpartisan voter guides to educate voters about candidates and issues, Democracy NC works for pro-democracy reforms that protect voting rights and improve government accountability and ethics. Democracy NC's volunteers, who are registered North Carolina voters from every region of the state, form grassroots coalitions throughout the state and spend thousands of hours advocating for more early voting sites and times to ensure that all voters have reasonable access to the franchise. Democracy NC has joined other nonprofit organizations in a public service campaign about the election protests to educate North Carolinians and affected voters and shared information to its social media. Petitioner's attempt to remove 60,000 voters' ballots from the election results is counter to Democracy NC's goals.

El Pueblo is 501(c)(3) organization with a mission to build collective power through leadership development, organizing, and direct action so that the Latin American community and other marginalized communities control their own stories and destinies. To accomplish its mission, El Pueblo operates robust civic engagement program, which includes aiding community members in obtaining United States citizenship, helping them obtain proper identification, registering

eligible voters and newly naturalized citizens to vote, ensuring that all registered voters have the resources and language access they need to cast their ballots, and mobilizing voters to the polls. For example, El Pueblo has partnership with U.S. Citizen and Immigration Services and attends naturalization ceremonies at least twice month, where it passes out voter guides in both English and Spanish. Petitioner's attempt to discount tens of thousands of voters' ballots directly impacts El Pueblo's engagement efforts.

North Carolina Asian Americans Together ("NCAAT") is nonpartisan, nonprofit organization committed to supporting equity and justice for all by fostering community among Asian Americans and allies in North Carolina through civic engagement, leadership development, grassroots mobilization, and political participation. A key tenet of NCAAT's mission is to empower Asian Americans statewide in civic engagement and movement building by providing resources, training, and education toward a long-term social justice agenda. To accomplish this mission, NCAAT engages in variety of voter education programming, including producing print and digital materials about how to register and vote in North Carolina and how to access language assistance. Additionally, in major election years, NCAAT hosts a nonpartisan election protection hotline available in up to twenty-two Asian languages, which community members can call with questions about voting in North Carolina. A primary focus of NCAAT's civic engagement work is geared toward newly naturalized citizens. Once community members obtain United States citizenship, NCAAT follows up with them to ensure they get registered to vote and have the resources they need to participate in upcoming elections. NCAAT's work in aiding and advocating for voters will be undermined if Petitioner's request to throw out 60,000 ballots is granted.

North Carolina Poor People's Campaign ("NC Poor People's Campaign") is a state chapter of the national Poor People's Campaign, led by the North Carolina non-profit organization, Repairers of the Breach, which organizes around public policies to eliminate poverty. It also

educates and advocates for a living wage, affordable healthcare, and voting rights. As part of its voting rights advocacy, the NC Poor People's Campaign organized a Moral March to the Polls campaign and engaged in the National Council of Churches' Freedom Summer to educate and empower voters through voter registration, education, and mobilization in the 2024 General Election. It also organized several get-out-the-vote canvasses and rallies leading up to the November 5, 2024 General Election. In response to the election protests, NC Poor People's Campaign has supported petitions to Judge Griffin to respect the will of voters. Petitioner's request to discard 60,000 ballots would compromise the work of the Poor People's Campaign in 2024, and would greatly impact their voting rights advocacy work, creating distrust among members that their valid votes will be respected and counted in future elections.

ARGUMENT

I. North Carolina's Election Protest Scheme Requires Showing Affirmative Proof of Voter Ineligibility to Show an Outcome-Determinative Violation of Election Law.

When the North Carolina Supreme Court dismissed Judge Griffin's request for a writ of prohibition and instead remanded these protests to this Court, it instructed that the protests should proceed in the normal course, by appeal from the State Board of Elections to the Superior Court of Wake County. *Griffin v. State Board of Elections,* No. 320P24, at 2-3 (N.C. Jan. 22, 2025) (citing N.C.G.S. § 163-182.14(b)) (hereinafter "Supreme Court Order"); *see also id.* at 10 (Newby, C.J., concurring) (Judge Griffin's protests "need[] to follow the statutorily provided procedures."); *id.* at 11 (Earls, J., dissenting) (agreeing that the protests must proceed in Wake County Superior Court). "The process was designed by the people's representatives in the General Assembly as the lawful way to inquire into elections and is transparently set out in the General Statutes." *Id.* at 6 (Newby, C.J., concurring) (citing the election protest statutory scheme at N.C.G.S. §§ 163-182.9 to -182.15).

Importantly, the North Carolina Supreme Court's instruction that these protests be considered in the ordinary course, as required by state law, confers an obligation to proceed under the proper statutory scheme. This requires more than simply returning to this Court. It also requires adherence to the specific burdens of proof required under the North Carolina election protest scheme, as well as substantive standards for considering and challenging voter eligibility mandated under our state's election law by the North Carolina General Assembly. If those standards are not satisfied, an election protest cannot succeed.

An election protest may be granted only when there is "substantial evidence of any violation, irregularity, or misconduct sufficient to cast doubt on the results of the election." N.C.G.S. § 163-182.10(d)(2). A successful election protest must demonstrate, by "substantial evidence[,]" that such an irregularity actually casts doubt on the results of the election. *Id.* Election protests may challenge voter eligibility if "claims regarding the eligibility of certain voters" constitute "evidence that an outcome-determinative violation of election law, irregularity, or misconduct has occurred." *In re Consideration of Certain Legal Questions Affecting the Authentication of the 2016 General Election*, at 1-2 (N.C. State Bd. of Elections Nov. 28, 2016); *see also Bouvier v. Porter*, 386 N.C. 1, 4, 900 S.E.2d 838, 843 (2024). The "substantial evidence" standard requires evidence "strong enough to *establish* to a reasonable person that the claimed irregularities occurred and that those irregularities swayed the election." North Carolina State Board of Elections, *Election Protest Procedures Guide*, at 8 (last updated June 27, 2022);[4] *see also Lackey v. N.C. Dep't of Hum. Res.*, 306 N.C. 231, 238, 293 S.E.2d 171, 176 (1982); *Humble Oil & Ref. Co. v. Bd. of Aldermen*, 284 N.C. 458, 470–71, 202 S.E.2d 129, 137 (1974).

But the mere fact of raising these voter challenges in the election protest context does not vitiate the statutory standards for voter challenges. Indeed, in order for a protester to show a

[4] https://s3.amazonaws.com/dl.ncsbe.gov/Requests/2020/Election%20Protest%20Procedures%20Guide.pdf.

"violation of the election law or other irregularity or misconduct," as required by N.C.G.S. § 163-182.10(d)(2), they must articulate a theory that is consistent with the whole of the election code. And when a voter (or over 60,000 voters) has their eligibility to cast a ballot challenged, state law governs how such a challenge must proceed and to what standard of proof it must be held. Those statutory standards apply with just as much force here.

North Carolina election law has an unambiguous presumption of eligibility for a voter whose eligibility to vote is challenged. "No challenge shall be sustained unless the challenge is substantiated by affirmative proof. In the absence of such proof, the presumption shall be that the voter is properly registered or affiliated." N.C.G.S. § 163-90.1(b). The statutory scheme also circumscribes when protesters may contest the eligibility of a voter. "Challenges shall not be made indiscriminately and may only be made if the challenger knows, suspects or reasonably believes such a person not to be qualified and entitled to vote." N.C.G.S. § 163-90.1(a). In order to prevent indiscriminate challenges, the proffered evidence must be specific to the individual voter being challenged. *See* North Carolina State Board of Elections, *Voter Challenge Procedures Guide*, at 6 (last updated Dec. 18, 2023).[5] "[I]nformation pulled from a public website or database that conveys no information specific to the circumstances of the voter" does not qualify as individualized evidence and cannot be grounds for a voter challenge. *Id.*; *see also N.C. State Conf. of NAACP v. Bipartisan State Bd. of Elections & Ethics Enf't*, No. 1:16-CV-01274, 2018 WL 3748172, at *7 (M.D.N.C. Aug. 8, 2018).

Faithful adherence to the statutory scheme, both for considering election protests and for substantively determining whether any irregularity of election law occurred, requires careful testing of the allegations, legal theories, and proof—or lack thereof—offered in support of the election protests. For the purposes of Judge Griffin's protests, this means holding his voter

[5] https://s3.amazonaws.com/dl.ncsbe.gov/Legal/Voter%20Challenge%20Guide.pdf.

eligibility challenges to the statutorily mandated burden of proof, and requiring that, even if he articulates plausible legal theories of voter ineligibility (a legal conclusion that Amici do not concede), he must not only allege, but then prove via affirmative, individualized evidence that these voters are actually ineligible. Only by holding Judge Griffin's protests to these statutory standards can the election protest procedure "designed by the people's representatives in the General Assembly as the lawful way to inquire into elections" be properly administered. Supreme Court Order at 6 (Newby, C.J., concurring).

II. The Complete Lack of Individualized Allegations in Judge Griffin's Protests Fails to Carry the Statutorily Required Burden and Cannot Justify Granting His Requested Relief.

a. *The Protests Do Not Allege, Much Less Show, Actual Voter Ineligibility, as Required By State Law.*

The procedural complications in this and related matters to date have obscured a fundamental, and fatal, oversight in Griffin's protests: he has not alleged or offered *any* evidence —let alone substantial evidence—that *any* Incomplete or Overseas ID challenged voter is actually ineligible to vote, as he is required to do in order to prevail under state law.

Judge Griffin does not provide (or even allege the existence of) any evidence, let alone substantial evidence, in support of his sweeping claims. Protesters do not allege that even a *single* voter whose registration allegedly lacks a driver's license or Social Security number is *actually* ineligible to vote under state law. Nor does Judge Griffin offer any investigation into the specific circumstances of any voter he identifies as potentially ineligible. As a result of these omissions, he fails to offer any evidence whatsoever that any of the voters challenged is in fact ineligible. What's more, he does not dispute that each challenged voter was successfully able to cast a ballot in the General Election pursuant to a registration appearing on the state's official list of valid registrants at the time of the election. "In the absence of such proof, the presumption shall be that the voter is

properly registered or affiliated." N.C.G.S. § 163-90.1(b). This lack of individualized allegations or evidence alone is sufficient to immediately dismiss Judge Griffin's protest.

Instead, the lists of voters whose registrations are purportedly incomplete as submitted by Judge Griffin with his protests rely upon precisely the kind of systematized data query that the Board has specifically said does not meet a challenger's (or protester's) burden to challenge voter ineligibility. *See* Voter Challenge Procedures Guide at 6. This kind of baseless mass challenge is exactly the circumstance that the North Carolina election code is designed to prevent.

Furthermore, this failure to proffer any allegations, let alone affirmative proof, of actual ineligibility is expressly barred by the burden of proof codified in state statute. Challenges "may only be made if the challenger knows, suspects or reasonably believes such a person not to be qualified and entitled to vote." N.C.G.S. § 163-90.1(a). This affirmative requirement serves a state interest of fundamental importance: ensuring that when North Carolina voters participate in the democratic process and exercise their fundamental right to vote, those voters are not wantonly disenfranchised without definitive proof they were ineligible to vote.

Judge Griffin also fails to account for the readily available alternative explanations that do not bear on voter eligibility for both the voters who appear in his "Incomplete Registration" protests and in his "Overseas ID" protests. Instead of arguing that these voters are substantively ineligible to vote in North Carolina, as required by N.C.G.S. § 163-90.1, Griffin instead focuses on purported technical defects that do not bear on those voters' actual eligibility. These efforts should fail because there are numerous possible explanations for these supposed omissions that do not show any voter's actual ineligibility, even under Judge Griffin's flawed theories of state law.

Starting with the Incomplete protests, there are a multitude of reasons why an eligible voter's file might be missing a driver's license or Social Security number. For example, voters may have provided a driver's license or Social Security number at the time of registration, and it

was either not entered into or was somehow removed from their voter registration file. *See, e.g.*, Exs. 2, 6−15, 17, 19−22, 25 (Impacted Voters who remember providing identifying information, including some who confirmed this with their county board of elections). This includes voters who might have provided a driver's license or Social Security number at the time of registration, but had their information mismatch to the DMV database or Social Security Administration databases for reasons unrelated to eligibility (such as inadvertent typos in information, misspelling or reasonable variation in names) and thus omitted in the voter file, a possibility the State Board has expressly recognized. *See* NCSBE Decision and Order at 16 (Dec. 13, 2024) ("[W]hen a registrant provides one of these numbers but the number does not validate through a database match among different government databases, their voter registration database record will lack such a number.") These and other voters may also have provided a driver's license or Social Security number at a later date, such as when they requested a mail-in ballot or when they presented a driver's license to satisfy North Carolina' voter ID requirement. *See, e.g.*, Ex. 1-3, 6, 8, 10-22, 24, 25 (Impacted Voters who provided their driver's license when they voted). Moreover, other voters also might not possess a driver's license or Social Security number but still be a North Carolina citizen who is eligible to register and vote, a scenario that is contemplated by both state and federal law. In other words, even if Judge Griffin's erroneous view of state and federal law as to alleged "Incomplete" voters were true (it is not), his failure to include specific allegations as to specific voters' eligibility is fatal to his protests.

At base, whether any one of these reasons, or yet another reason, specifically describes any individual voter's circumstance is beside the point. It is the protester's burden under state law to affirmatively show that the voters they claim are ineligible are, in fact, ineligible to vote. Yet Judge Griffin has done nothing to rebut or disprove the presumption of eligibility, much less account for

the many plausible alternative explanations for the inclusion of any of the voters he challenges on the "incomplete registration" list, let alone establish actual ineligibility for any of these voters.

In short, Judge Griffin's protests elide any examination of what actually happened in the case of these voters, preferring instead to seize on technicalities and hypotheticals to merely insinuate ineligibility in conclusory terms. When combined with the presumption of eligibility and the failure of Griffin to even contemplate, much less rebut, these explanations, his protests fail as a matter of state law.

Griffin's Overseas ID protests omit an even more obvious explanation for the purported violation of election law: Each and every voter included on this list did not include a copy of their identification documents with their absentee ballot because the State Board expressly told them, with approval by the Rules Regulatory Commission, there was no need to do so under state law.[6] Mystifyingly, Griffin contends that these voters should be disqualified for *following* the State Board's instructions. To add insult to injury, he lodges this claim without making any attempt to show that these voters were not eligible to cast their ballots and could not otherwise satisfy the ID requirement if asked. He never alleges even one vote cast by this group of challenged voters was fraudulent. Even a cursory individuated examination of these voters, as well as basic common sense, demonstrates that if it had been required of them, many (or even all) of these voters would have provided a copy of their ID or availed themselves of the reasonable impediment exception provided for by state law. *See* Exs. 23, 26. Judge Griffin does not even dispute this explanation, let alone rebut it. And as with the Incomplete Registration protests, Judge Griffin offers no evidence whatsoever that these voters are actually ineligible to cast a ballot in the first place. For

[6] https://www.oah.nc.gov/minutes-march-meeting-2024-signedpdf/open (8 N.C. Admin. Code § 17.0109 approved unanimously).

the same reasons, then, his Overseas ID protests are insufficient as a matter of state law and must be dismissed.

b. *Even if Griffin's Erroneous Interpretations of Law Were Correct, He Could Not Show an Outcome-Determinative Irregularity Occurred.*

Even were the Court to assume that Judge Griffin had shown a practice administered by the State Board of Elections during the 2024 General Election that was an irregularity or violation of law, which he has not, he still has not satisfied his burden of demonstrating that any such alleged irregularity was outcome-determinative. This is because he cannot show that, had his preferred interpretation of the law been in place all along, any of the challenged voters could not have satisfied these requirements and still cast a ballot. For example, he cannot show that had the "correct" voter registration form been utilized for voters, that they did not already, or that they could not have completed and satisfied the requirements of state law if given the opportunity. (As the appended affidavits show, many in fact did.) Likewise, he has not alleged that if any of the challenged overseas voters who followed all requirements set forth for the 2024 election had, in fact, been required to satisfy the photo voter ID requirement or been provided the option of a reasonable impediment exception form that they could not have complied. As for purported "non-resident" voters, who voted based on a state law explicitly granting them that right, N.C.G.S. § 163-258.2(1)(e), those voters number fewer than 300, far below the margin of victory here, and thus would not be outcome determinative alone.[7]

This is relevant because Judge Griffin is not arguing that the law as established by lawful authorities at the time of the election was violated or misapplied. He is rather arguing that those lawful bodies erred in their interpretations and that, instead, his preferred interpretation should have been in place during that time. If the Court find this untimely theory plausible, both state law

[7] And even then, if Judge Griffin's "preferred" version of the law had been adopted by the General Assembly since UMOVA's passage, who is to say whether any voter might not have established some residency in the state to successfully cast a ballot.

and fundamental fairness demand that Judge Griffin must then show voters could not have satisfied those alternative requirements.

This he cannot do. Judge Griffin's legal arguments and factual allegations, then, even if assumed true, could not support the conclusion that an outcome-determinative number of voters could not have still cast a ballot if his preferred set of rules had been in place. This provides an alternative ground for the Court to affirm the dismissal of his protests here.

c. *Even If Judge Griffin's Legal Theories Were Valid, His Requested Remedy is Not Available Without An Evidentiary Record.*

Even if this Court were inclined to overlook these determinative facial defects in Judge Griffin's protests and consider the protest theories on their merits, it would not be able to grant his requested relief without the weight of an evidentiary record. While Amici do not believe this omission controls the outcome here, both due to the lack of merit in Griffin's theories and the constitutional and equitable concerns with applying them retroactively, even if one assumes *arguendo* they are correct, it is indisputable that the complete lack of such a record would bar relief on even a meritorious theory with no constitutional concerns. The statutory election protest scheme requires an evidentiary record before consideration of granting any substantive relief.

On this point, North Carolina's election protest statutes are again clear. Pursuant to N.C.G.S. § 163-182.12, the State Board of Elections took jurisdiction over the protests at issue here. *See* NCSBE Decision and Order on Protests at 4. When the State Board of Elections takes jurisdiction of a protest, it follows the normal protest procedures laid out in N.C.G.S. § 163-182.10. More importantly, the burden of proof to establish "substantial evidence of any violation, irregularity, or misconduct sufficient to cast doubt on the results of the election" remains in place, as it must for all election protests. *See* N.C.G.S. § 163-182.10(d)(2). Without such evidence, it is impossible for a protest to succeed. *Id.*

Griffin has no such evidence. Not only do his protests not contain any evidence, let alone substantial evidence, he has neglected to account for or rebut the plausible alternative explanations for the purported technical defects he identifies. And even more fundamentally, he has failed to show that any of the voters he challenges are actually ineligible to vote in North Carolina. These are all allegations that, even if they were sufficient to articulate a valid protest theory, must be tested through evidence, especially where the voters have followed the law and alternative and innocent explanations exist. The lack of evidentiary record in this case necessarily prevents Judge Griffin's protests from establishing anything by substantial evidence, let alone a violation of state election law. There is no evidentiary basis to prove anything with here.

James v. Bartlett, 359 N.C. 260 (2005) does not counsel any differently. In *James*, the North Carolina Supreme Court ruled that when the State Board counted out-of-precinct provisional ballots, it was an outcome-determinative violation of state election law. 359 N.C. at 270. However, the evidentiary record in *James* was clear: there was no factual dispute that the challenged voters voted out-of-precinct. *Id.* at 263. Instead, the case turned entirely on whether voting out of precinct was legal under state law. *Id.* There is no such evidentiary record here, and there is significant dispute about whether the technical deficiencies identified by Judge Griffin actually occurred or are the result of administrative errors. If Judge Griffin's protests are to be considered on their merits, such disputes must be resolved through adducing and testing an evidentiary record which does not exist here.

Further, there was no argument in *James* that voters detrimentally relied on the State Board's guidance, as the State Board had shifted its interpretation of the relevant North Carolina statutes in *James* for the very first time that election cycle, and had not informed voters or candidates of the shift in policy. *Id.* at 265 (noting the "absence of any clear statutory or regulatory

directive" that out-of-precinct ballots would be counted in 2004).[8] That is the opposite of the case here, where the State Board first, announced prominent rules governing each of Griffin's protests well in advance of the 2024 election and then, operated in compliance with the election rules existing at the time of the election, and where each category of impacted voters cast their ballots in accordance with the State's announced rules and procedures. *James* does not require, or even counsel, granting Griffin's protests.

Judge Griffin's contention that "this is not an instance in which an election official affirmatively instructed a voter" to take a specific course of action is wholly inaccurate. Griffin Brief, Case No. 619-910, at 41.[9] Each of the challenged voters, in all three of Griffin's categories, voted specifically pursuant to rules laid out by the State Board. In the case of the Overseas ID voters, as well as the Never Resident voters, this is self-evident. *See Military and Overseas Voting*, NORTH CAROLINA STATE BOARD OF ELECTIONS, https://www.ncsbe.gov/voting/military-and-overseas-voting (last visited Feb. 3, 2025). In the case of the Incomplete voters, the State Board announced a year in advance of the 2024 election that it would not require additional information from anyone already registered to vote. *See In re: HAVA Complaint of Carol Snow*, N.C. State Bd. of Elections, at 4 (Dec. 6, 2023).[10] These are prominent, unambiguous announcements of State Board policy and election law. Voters were entitled to rely on these affirmative instructions about how to vote.[11]

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[8] Judge Griffin's insistence that the 2004 general election was not the first time out-of-precinct ballots were counted, and thus voters developed reliance interests that the North Carolina Supreme Court held were insufficient to defeat the protests, is inaccurate. The relevant reliance interest is that of the voters who voted pursuant to the rule. In *James*, voters were not expressly told that out-of-precinct ballots would be counted ahead of time. 359 N.C. at 265. No out-of-precinct voter relied on guidance from the State Board to cast their ballot in 2004, because no such guidance existed. That is very different from the present case.

[9] Pagination is noted in PDF pages as opposed to page numbering.

[10] https://s3.amazonaws.com/dl.ncsbe.gov/HAVA%20Administrative%20Complaints/2023-10-06%20Snow/NCSBE%20HAVA%20Complaint%20Decision%20-%20Snow.pdf.

[11] For over a century, the North Carolina Supreme Court has recognized that otherwise eligible and registered voters should not have their vote disqualified due to administrative errors. *See People ex rel. Boyer v. Teague*, 106 N.C. 576, 11 S.E. 665, 670 (1890) (rejecting effort to disqualify vote based on an alleged failure to register where "the voter

If the Court decided to consider Judge Griffin's flawed protests on the factual merits, it would need an evidentiary record where the factual basis for the protests could be tested. Under the election protest statutes, it is the protester's burden to establish the purported violations both occurred and were outcome determinative (and in so doing, establish actual ineligibility on behalf of an outcome-determinative number of voters), and to do so by adducing substantial evidence.

Under state law, Judge Griffin's requested remedies, wherein he asks this Court to first, reverse the State Board and then, direct them to exclude all challenged ballots from the final count, is entirely unavailable without an evidentiary record to overcome his burden, a record which he has taken no steps to provide this Court.

III. The Challenged Voters Are Eligible to Vote in North Carolina.

While Griffin has failed to even allege, let alone prove, actual ineligibility on the part of any challenged voter, his protests are virtually certain to fail for an even more basic reason. Not only did Griffin fail to allege or attempt to prove actual ineligibility, he would not be able to do so. What evidence has been adduced, both by Amici and in the public record, all supports the presumption that the more than 60,000 voters Judge Griffin challenges are bona fide eligible voters who have followed all rules provided by the state to exercise their fundamental right to vote and voted in compliance with state law.

Since Griffin's protests were filed, there has been significant public reporting on the voters who are on Griffin's challenge lists. The overwhelming weight of this reporting demonstrates that these voters are eligible North Carolina voters who cast ballots pursuant to the rules laid out by the State Board. Many such voters have confirmed that they provided their Social Security numbers when registering to vote, despite Judge Griffin's claims that their registration record

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procure[d] the proper certificate and duly register[ed] thereunder[,]" since where "the registrar made a mistake, without the fault or complicity of the voter . . . the vote is legal and should not be disturbed"). *See also Woodall v. W. Wake Highway Com.*, 176 N.C. 377, 388–91 , 97 S.E. 226, 231–32 (1918); *Overton v. Mayor & City Comm'rs of Hendersonville*, 253 N.C. 306, 315–16, 116 S.E.2d 808, 815 (1960).

includes no such number.[12] Also among those faced with the possibility of having their ballots discarded are citizens that already face barriers to exercising their right to vote. Elizabeth MacDonald lives in an area of western North Carolina that was ravaged by Hurricane Helene and she made a special effort to vote in November, in spite of the devastation in her community and while caring for her infant. Doug Bock Clark, *They Followed North Carolina Election Rules When They Cast Their Ballots. Now Their Votes Could Be Tossed Anyway*, PROPUBLICA (Jan. 27, 2025).[13] Connor Addison, who already takes special care to vote due to his epilepsy, used a state-approved ID card to vote in 2022 and 2024 but now faces disenfranchisement. *Id.* This should give the Court extreme pause before granting any of Griffin's requested relief.

Simply put, these voters, including the individual voters directly impacted by the challenged represented in this brief, and thousands of others similarly situated, are eligible to vote in North Carolina. There has been no impropriety - they registered and voted pursuant to the rules and regulations applicable to them at the time they voted. These voters followed the law. To retroactively attempt to disqualify their ballots on the basis of newfound disagreement with the rules they voted under – after federal and state courts had already rejected similar efforts to challenge these rules prior to the election – violates fundamental precepts of due process, democracy, and basic fairness. To do so without ever alleging even one of these voters is actually ineligible, or offering any proof in support of such an allegation, renders that attempt woefully insufficient under state law.

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[12] Abraham Rubert-Schewel, from Durham County, retrieved a copy of his voter registration form from 2020 and confirmed that it included the last four digits of his Social Security Number, and said that the protest "really weakens [his] sense of our democracy in North Carolina." Patrick Marley, *To gain a court seat, Republicans seek to throw out thousands of votes*, WASH. POST (Jan. 23, 2025), https://www.washingtonpost.com/politics/2025/01/23/north-carolina-supreme-court-griffin-riggs/. Likewise, Spring Dawson-McClure of Orange County verified that her 2012 voter registration contained her Social Security Number and was told by her County Board of Election that she likely was flagged for the challenge list because her Social Security Number matches her maiden name, and not her married name. Joe Bruno, *Voter whose ballot is being challenged provided SSN during registration*, YAHOONEWS (Jan. 8, 2025), https://www.yahoo.com/news/voter-whose-ballot-being-challenged-215500041.html?guccounter=1.

[13] https://www.propublica.org/article/north-carolina-voters-jefferson-griffin-supreme-court-challenge.

CONCLUSION

For the reasons stated above, Amici respectfully requests that the Court hold that, in addition to the reasons stated by the NCSBE Decision and Order, Griffin's protests also fail as a matter of law for failure to allege or prove the challenged voters are actually ineligible to vote in North Carolina, as required by N.C.G.S. § 163-90.1.

Respectfully submitted, this the 3rd day of February, 2025.

By: /s/ Caitlin A. Swain

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that a copy of the foregoing document was e-filed and served upon the parties listed below via e-mail, addressed as follows:

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This the 3rd day of February, 2025.

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